

22STCV34806 22STCV34806

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-18

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Case Number: 22STCV34806 Hearing Date: September 18, 2026 Dept: 510

No.

2 - Randy Rangel v. City of Los Angeles

OSC

re: Enforceability of Lien

The instant dispute concerns whether former counsel for Plaintiff, Abel Nair, is entitled to enforce a lien he holds against Plaintiff's final judgment award of \$5,171,403.39. Nair filed his notice of attorney charging lien with the Court on February 4, 2026, wherein he requests 50% of Plaintiff's gross recovery per his retainer agreement with Plaintiff.

On

July 24, 2026, the Court set an order to show cause regarding the enforceability of Nair's lien on Plaintiff's judgment against the City. The Court ordered briefing from Plaintiff and Nair to be filed per code. (See 7/27/26 Nunc Pro Tunc Minute Order.) The Court has received Rangel's opening brief, reply brief, and supplemental reply brief. While Rangel's supplemental reply brief references Nair's opposition brief, which was apparently untimely served on Rangel on September 11, 2026, Nair did not file this brief with the Court.

On

September 17, the day before the hearing, Nair emailed a "courtesy copy" of an opposition brief and declaration to the Department, along with confirming that the documents were submitted for e-filing on September 15, 2026. As of noon on September 17, the Court does not have record that either document was filed. Even if the documents are filed prior to the hearing, they are long overdue. The

Court exercises its discretion to disregard the brief and declaration as untimely filings. (See Cal. Rules of Court, rule 3.1300(d)).

The

Court finds that Nair's lien is unenforceable. The Court already determined the reasonable value of Nair's services. On September 16, 2025, in connection with an attorney fee motion, this Court reviewed evidence submitted by Nair, including a supporting declaration and time records. From this evidence, the Court determined that Nair was entitled to recover \$320,417.50, which accounted for 492.95 hours spent on the case at a rate of \$650 per hour. (See 9/16/25 Minute Order.) Nair did not perform any legal services on this matter subsequent to October 2024, so all of his time was included in the prior fee award.

As

mentioned above, Nair has not timely submitted any briefing or evidence for the Court's consideration of the amount requested in the lien. There is no evidence that Nair should be entitled to recover any more than the fees already awarded to him in September 2025.

Disposition

The

Court hereby deems the charging lien filed by Nair on February 4, 2026 unenforceable. Nair's fee award is already provided for in the Court's September 11, 2026 ruling. That amount, \$320,417.50, is to be paid by Plaintiff to Nair from the attorney fees portion of the judgment to be paid by Defendant.